

The last case relied on by Petitioner, *Ortiz v. Elmcrest Care Center, LLC* (2024) 106 Cal.App.5th 594, 609, the arbitrator made an interim order that decided everything but attorney's fees and costs. Before the issues of attorney's fees and costs were heard, the arbitrator, after receiving applications from both parties, changed the interim order twice. The last time the arbitrator changed its award of compensatory damages, it also decided the issues of attorney's fees and costs. (*Id.*) The trial court found that the arbitrator's changes to the interim orders was improper because it constituted an award. The Court of Appeal found that the interim orders were not awards under CCP § 1283.4 and the arbitrator could make changes until it decided the issue of attorney's fees and costs. The Court found "[a] ruling that reserves a final determination on matters that could have been decided at the time plainly does not satisfy the statutory definition of an 'award' under the statute." (*Id.* at 610.) In the partial award entered by the appraisers, it specifically indicates that it does not include a determination regarding personal property and that it is a partial award. Based on the reasoning in *Ortiz*, the partial award is not an "award" under CCP § 1283.4.

In reply, Petitioners contend that sometime during the appraisal process, Respondent indicated that it was going to reevaluate its issues with Petitioner's personal property claims. Exhibit D to Matthew Blumkin's Second Supplemental Declaration, provided to support this assertion, is not persuasive.

Petitioner's Objections to Evidence Submitted in Opposition to 1st Amended Petition to Confirm the Appraisal Award Dated March 9, 2026 numbers 1-62 SUSTAINED.

State Farm's Objections to Insureds' Evidence Offered in Support of Insureds' First Amended Petition numbers 1-5 SUSTAINED.

First Amended Petition to Confirm the Appraisal Award Dated March 9, 2026 DENIED.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2602233	LARI VS STATE FARM GENERAL INSURANCE CO.	HEARING RE: CROSS PETITION TO DECLARE APPRAISAL NULL AND VOID

Tentative Ruling: Respondent asserts that the Court lacks authority to vacate or confirm the partial award. However, it cites to no authority that the Court has the ability to void a partial award. Under CCP § 1285, "[a]ny to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award." As discussed above, under § 1283.4, an "award shall be in writing and signed by the arbitrators concurring therein. It shall include a determination of all the questions submitted to the arbitrators the decision of which is necessary in order to determine the controversy." (*Id.*) As discussed above, the partial award does not constitute an "award" under CCP § 1283.4. As such, the Court lacks authority to confirm, correct or vacate the partial award.

While Respondent asks the Court to void the partial award, it cites to no authority the Court is allowed to do this. It also asks the Court to order the matter to be reheard by a new panel. Again, Respondent points to no authority to support that the Court has the power to do this. It cites to CCP § 1287, which allows a rehearing before new arbitrators only if an award is vacated, which as discussed above cannot occur at this time. "Under California law, the scope of judicial review of arbitration awards is very narrow." (*VVA-TWO LLC v. Impact Development Group, LLC* (2020) 48 Cal.App.5th 985, 998.) A court

may vacate only an entire arbitral award, not some portion of it, even if the basis for vacatur affects only one aspect of the award. . . . Similarly, courts may not ‘correct[]’ an arbitral award in any way that ‘affect[s] the merits’ of the decision upon the controversy submitted.” (Id.). Respondent cites to no authority that allows for the relief of an interim award from an arbitrator.

State Farm’s Objections to Insureds’ Evidence Offered in Response to State Farm’s Cross-Petition #s 1-20 SUSTAINED.

Petitioner’s Objections to Evidence Submitted in Support of State Farm’s Cross-Petition #s 1-62 SUSTAINED.

Cross-Petition for A Declaration That the Partial Appraisal Award is Null and Void and for an Order to Rehear the Appraisal Before a New Panel is DENIED.